

Tentative Rulings for July 9, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2512925	TD BANK USA, N.A. VS VILLA	MOTION FOR JUDGMENT ON THE PLEADINGS BY TD BANK USA, N.A.

Tentative Ruling: Motion unopposed.

Motion is **GRANTED**. A motion for judgment on the pleadings is subject to the same rules governing demurrers; and, like a demurrer, the grounds for the motion must appear on the face of the challenged pleading or from any matter of which the judge is required to take judicial notice. (CCP 438(d); Hardy v. America's Best Home Loans (2014) 232 Cal.App4th 795, 802.) The court finds Ps complaint states facts sufficient to constitute a cause of action against Defendant, and the answer does not state facts sufficient to constitute a defense to the complaint. (CCP 438(b)(1), (c)(1)(A).) Therefore, Plaintiff's motion is therefore granted. Court to sign proposed order and proposed judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVME2603238	CAPITAL ONE, N.A. VS DAVIS	MOTION TO QUASH SERVICE OF SUMMONS BY CHERRY DAVIS

Tentative Ruling: Motion is unopposed.

The court has reviewed the register of actions and there is not a Proof of Service on file. Defendant's motion is **GRANTED**.

3.

CASE #	CASE NAME	HEARING NAME
CVME2603585	ALLY BANK VS ABBOTT	APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY BY ALLY BANK

Tentative Ruling: Application is unopposed. Application **GRANTED**. Plaintiff has established the probable validity of the plaintiff's claim to possession of the following property: 2018 Ram 2500 motor vehicle, Vehicle Identification No. 3C6UR5CL0JG327206, with a value of \$24,075.00. Plaintiff is not required to post a bond. Court to sign the proposed Order for Writ of Possession.

4.

CASE #	CASE NAME	HEARING NAME
CVME2603974	ALLY BANK VS BOW	HEARING ON NOTICE OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling: Application unopposed. Application **GRANTED**. Plaintiff has established the probable validity of the plaintiff's claim to possession of the following property (specify): 2024 Chevrolet Malibu motor vehicle, Vehicle Identification No.

1G1ZE5ST4RF237638, with a value of \$20,125.00. Plaintiff is not required to post a bond. Court to sign the proposed Order for Writ of Possession.

CASE #	CASE NAME	HEARING NAME
CVSW2400885	WELLS FARGO BANK, N.A. VS GONZALEZ	MOTION TO VACATE JUDGMENT BY WELLS FARGO BANK, N.A.

Tentative Ruling: IT IS ORDERED that the default Judgment entered by the Court against Defendant JAQUELINE GONZALEZ shall be, and hereby is, vacated, lifted and set aside. The Court further ORDERS this matter dismissed. Court to sign the proposed order.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2404185	BANK OF AMERICA, N.A. VS DAVID	MOTION FOR ORDER DEEMING ADMISSIONS ADMITTED BY BANK OF AMERICA, N.A.

Tentative Ruling: Motion is unopposed. Motion is **GRANTED**. Requests for Admission propounded on July 12, 2024 are deemed admitted. Court to sign the proposed order.